

UPSC GS-II POLITY

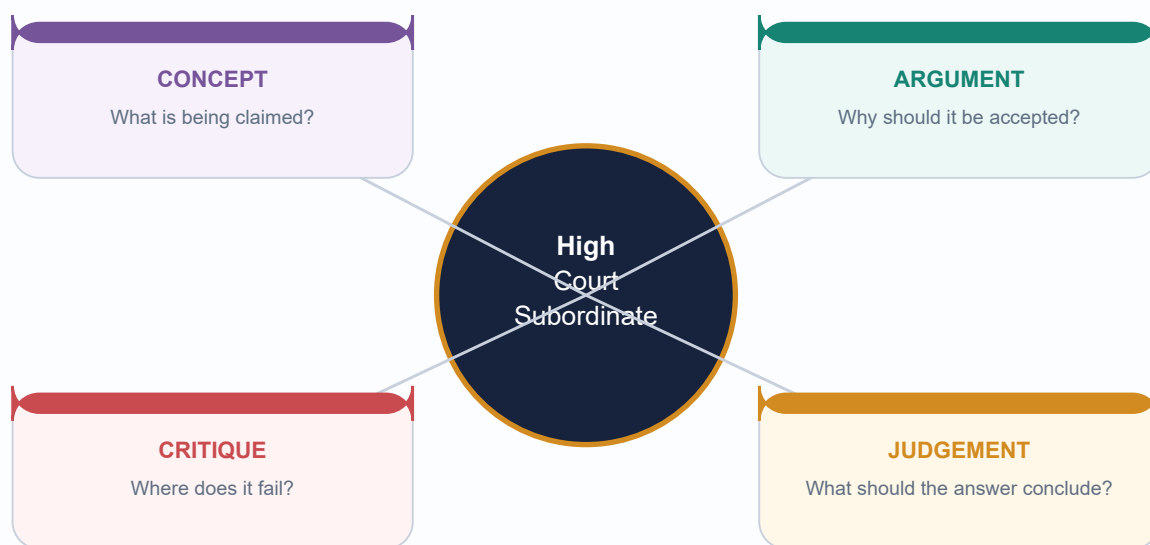
High Court and Subordinate Courts

Integrated Basic + Advanced Course

11 deep-learning modules | Articles 214-237

Institutional maps, jurisdiction charts, comparisons, UPSC traps and Mains frameworks

Prepared from the verified Polity knowledge base (Laxmikant Ch. 34-36)



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

1. India's Integrated Judiciary: Where the High Court Fits

GS-II Polity -
Judicial
Hierarchy

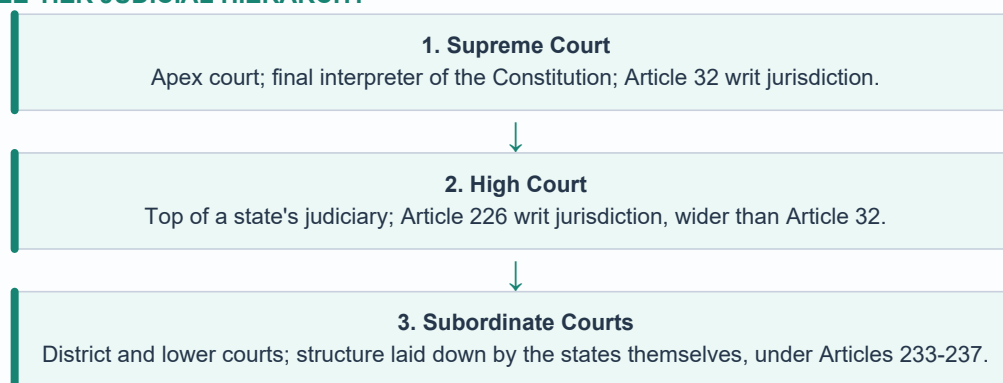
NEWS TRIGGER

Debates on judicial reform routinely stress that India runs one single, integrated judicial hierarchy rather than separate Union and state court systems.

INTRO & ORIGIN

India has one integrated judiciary — a single hierarchy of courts enforcing both Union and state laws, with the Supreme Court at the apex, High Courts in the middle, and subordinate courts at the base.

THE THREE-TIER JUDICIAL HIERARCHY



STATIC THEORY

- This single hierarchy enforces both central and state laws — there is no separate line of 'state courts' interpreting only state law, unlike some federations with dual court systems.
- High Courts are established under Article 214 (Part VI) and sit above all subordinate courts within their territorial jurisdiction.

MEMORY HOOK

One judiciary, three tiers: Supreme Court -> High Court -> Subordinate Courts.

MUST-KNOW FACTS

1. India follows a single, integrated judicial system, not a dual (Union + state) court system.
2. The High Court is the highest court within a state's own territory.
3. Articles 214-231 govern the High Court; Articles 233-237 govern subordinate courts.

UPSC TRAPS

WRONG: India has separate Union courts and state courts, as in some federal systems.

CORRECT: India has one single, integrated judiciary enforcing both Union and state laws.

MAINS ANGLE

Use the integrated-judiciary feature to argue that Indian federalism is administratively more unitary than classical federations, even though legislative and executive powers are divided.

STUDY LINK

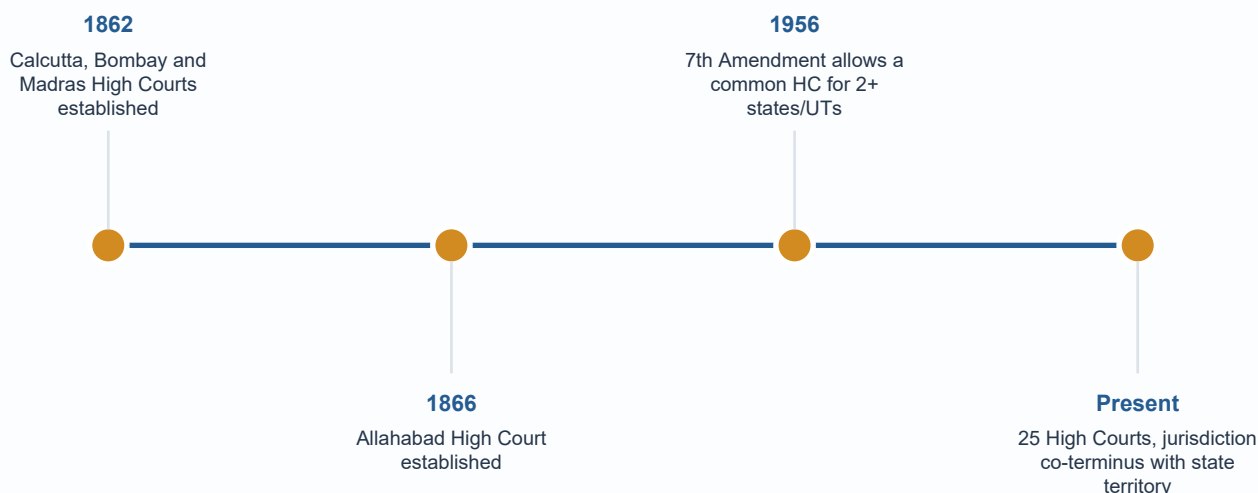
Polity -> Federal features with unitary bias | Supreme Court

HIGH

2. High Court Organisation: From 1862 to Today's 25

GS-II Polity - HC Organisation

THE GROWTH OF THE HIGH COURT SYSTEM



STATIC THEORY

- Article 214 provides for a High Court for each state, but the 7th Amendment (1956) permits Parliament to establish a common High Court for two or more states, or for a state and a Union Territory.
- There are 25 High Courts today; some are common to more than one state or Union Territory, so the count is not simply one-per-state.

MEMORY HOOK

1862 = first 3 HCs (Cal/Bom/Mad); 1866 = Allahabad; 1956 = common HC allowed; today = 25 HCs.

MUST-KNOW FACTS

1. The first three High Courts (Calcutta, Bombay, Madras) were established in 1862.
2. Allahabad High Court was established in 1866.
3. The 7th Amendment (1956) enabled a common High Court for multiple states/UTs.
4. There are 25 High Courts in India at present.

UPSC TRAPS

WRONG: There are 25 High Courts, exactly one for each state.

CORRECT: 25 High Courts exist, but some are common to two or more states/Union Territories — it is not a strict one-per-state count.

MAINS ANGLE

Cite the common High Court provision (7th Amendment) as an example of administrative efficiency being balanced against each state's institutional identity.

STUDY LINK

Polity -> 7th Amendment | Judicial infrastructure

HIGH

3. Appointment of High Court Judges: The Two-Stage Collegium

GS-II Polity - HC Appointment

NEWS TRIGGER

Collegium friction over High Court appointments and transfers remains a live governance debate, making the exact consultation sequence a frequently tested area.

KEY DATA

Stage	Who is consulted
HC judge appointment (originating HC)	HC Chief Justice consults 2 senior-most HC colleagues
Supreme Court collegium stage	CJI + 2 senior-most Supreme Court judges
HC judge transfer	Broader consultation, including 4 senior SC judges (Third Judges Case, 1998)
NJAC (National Judicial Appointments Commission)	Struck down by the Supreme Court in 2015

APPOINTMENT SEQUENCE FOR A HIGH COURT JUDGE



STATIC THEORY

- Every High Court judge, other than the Chief Justice, is appointed by the President after consultation with the CJI, the State Governor, and the High Court's Chief Justice.
- The National Judicial Appointments Commission (NJAC), intended to replace the collegium system, was struck down as unconstitutional by the Supreme Court in 2015.

MEMORY HOOK

HC stage = CJ + 2 senior HC judges; SC stage = CJI + 2 senior SC judges; transfer = broader, 4 senior SC judges.

MUST-KNOW FACTS

1. The Supreme Court collegium for an HC appointment is the CJI plus 2 senior-most SC judges.
2. HC judge transfers require a broader consultation process, following the Third Judges Case (1998).
3. NJAC was struck down by the Supreme Court in 2015.

UPSC TRAPS

WRONG: The collegium for HC appointment and HC judge transfer involves the same set of consultees.

CORRECT: Transfers require broader consultation (including 4 senior SC judges), unlike a fresh appointment.

WRONG: NJAC currently determines judicial appointments.

CORRECT: NJAC was struck down in 2015; the collegium system continues to operate.

MAINS ANGLE

Use the two-stage collegium and the NJAC judgment together to discuss the ongoing tension between judicial independence and executive accountability in judicial appointments.

STUDY LINK

Polity -> Collegium System | Third Judges Case (1998) | NJAC verdict

HIGH

4. Qualifications, Tenure and Removal: HC vs SC

GS-II Polity - HC
Judge Service
Conditions

KEY DATA

Feature	High Court Judge	Supreme Court Judge
Qualification route	Citizen + 10 years judicial office, OR 10 years as an HC advocate	Judicial office, HC advocacy, OR a 'distinguished jurist'
'Distinguished jurist' option	Not available	Available
Retirement age	62 years	65 years
Oath administered by	The Governor	The President
Removal process	Same as a Supreme Court judge (special majority, Judges Enquiry Act 1968)	Special majority (Judges Enquiry Act 1968)

STATIC THEORY

- A High Court judge must be a citizen of India and either have held judicial office for 10 years or been an advocate of a High Court for 10 years — the 'distinguished jurist' route available for the Supreme Court does not apply here, and there is no minimum age requirement.
- A High Court judge can also vacate office by being elevated to the Supreme Court, or by being transferred to another High Court by the President after consulting the CJI.

MEMORY HOOK

HC judge retires at 62, SC judge at 65 — 'sixty-two before sixty-five'.

MUST-KNOW FACTS

1. HC judges retire at 62; SC judges retire at 65.
2. HC judges take oath before the Governor; SC judges before the President.
3. The 'distinguished jurist' qualification route exists only for the SC.
4. Removal of an HC judge follows the same special-majority process as an SC judge.

UPSC TRAPS

WRONG: A distinguished jurist can be directly appointed as an HC judge.

CORRECT: The distinguished-jurist route exists only for Supreme Court appointments, not High Court appointments.

WRONG: HC judges retire at 65, same as SC judges.

CORRECT: HC judges retire at 62; only SC judges retire at 65.

WRONG: HC judges take oath before the President.

CORRECT: HC judges take oath before the Governor of the state.

MAINS ANGLE

A side-by-side HC vs SC service-conditions table is a reliable way to secure marks in any 'compare and contrast' question on judicial appointments.

STUDY LINK

Polity -> Supreme Court judge conditions | Judges Enquiry Act 1968

HIGH

5. Jurisdiction of the High Court: Six Dimensions

GS-II Polity - HC
Jurisdiction

KEY DATA

Jurisdiction type	Scope
Original	Admiralty, contempt, election disputes, FR enforcement; Calcutta, Bombay, Madras and Delhi HCs also have original civil jurisdiction
Writ (Article 226)	5 writs, for FRs AND 'any other purpose' — wider than the SC's Article 32; concurrent with the SC
Appellate	Civil and criminal appeals from subordinate courts; a death sentence needs HC confirmation
Supervisory (Article 227)	Superintendence over all courts/tribunals in its territory, except military courts; can act suo motu
Control over subordinate courts	Consulted on district-judge appointments; can withdraw cases involving constitutional questions
Court of Record (Article 215) & Judicial Review	Its own proceedings/precedents have evidentiary value plus contempt power; strikes down unconstitutional laws/orders

STATIC THEORY

- The High Court's original civil jurisdiction is limited to the four Presidency-era High Courts — Calcutta, Bombay, Madras and Delhi.
- Supervisory jurisdiction under Article 227 is broader than mere appellate power — it allows the HC to correct jurisdictional errors even without a formal appeal, and it can be exercised suo motu.

MEMORY HOOK

226 = writs | 227 = supervision | 215 = court of record | appellate = civil+criminal | original = admiralty/contempt/elections/FRs.

MUST-KNOW FACTS

1. Article 226 empowers the HC to issue writs for FRs and any other purpose — wider than the SC's Article 32.
2. A death sentence awarded by a Sessions Court needs HC confirmation.
3. Article 227 gives the HC supervisory power over all courts and tribunals in its territory except those constituted under laws relating to the armed forces.

UPSC TRAPS

WRONG: The High Court's writ jurisdiction is narrower than the Supreme Court's.

CORRECT: It is wider — Article 226 covers FRs plus 'any other purpose', while Article 32 is confined to FR enforcement.

WRONG: All 25 High Courts have original civil jurisdiction.

CORRECT: Only Calcutta, Bombay, Madras and Delhi High Courts have original civil jurisdiction.

MAINS ANGLE

When asked to evaluate the High Court's role in rights protection, lead with Article 226's wider scope and its basic-structure status (L. Chandra Kumar, 1997) as the strongest points.

STUDY LINK

Polity -> Article 32 | Judicial Review | Basic Structure Doctrine

HIGH

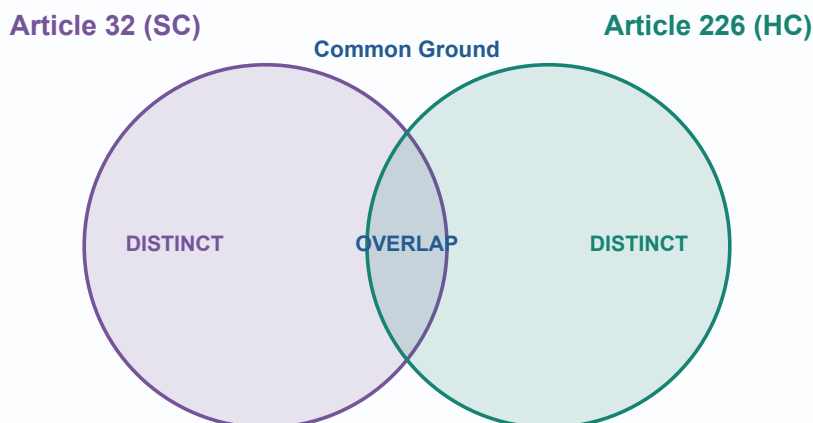
6. Article 226 vs Article 32: The Writ Jurisdiction Contrast

GS-II Polity - Writ Jurisdiction

NEWS TRIGGER

Whenever a case is filed before a High Court instead of the Supreme Court for the same fundamental right, the Article 226-Article 32 distinction becomes directly relevant.

ARTICLE 32 (SUPREME COURT) VS ARTICLE 226 (HIGH COURT)



Article 32 (SC)

- A Fundamental Right in itself (Article 32)
- Cannot be suspended except as the Constitution provides
- Guaranteed remedy — SC 'cannot refuse' to entertain it

Common Ground

- Both issue the same 5 writs: habeas corpus, mandamus, prohibition, certiorari, quo warranto
- Both enforce Fundamental Rights
- Jurisdiction is concurrent for FR matters

Article 226 (HC)

- Not itself a Fundamental Right — it is a constitutional power
- Covers FRs AND any other legal right ('any other purpose')
- Held to be part of the basic structure (L. Chandra Kumar, 1997)

Article 226 is wider in scope but Article 32 is a guaranteed, non-discretionary Fundamental Right.

STATIC THEORY

- In L. Chandra Kumar (1997), the Supreme Court held that the High Court's writ jurisdiction under Article 226 (and the SC's under Article 32) is part of the basic structure of the Constitution and cannot be excluded even by a constitutional amendment.
- Because Article 226 also covers 'any other purpose' beyond Fundamental Rights, it can be invoked for ordinary legal rights as well — a scope Article 32 does not have.

MEMORY HOOK

32 = FR only, guaranteed remedy | 226 = FR + any other purpose, wider but not itself a Fundamental Right.

MUST-KNOW FACTS

1. Both Articles 32 and 226 empower the issuance of the same 5 writs.
2. L. Chandra Kumar (1997) held that HC writ jurisdiction under Article 226 is part of the basic structure.
3. Article 226 is available for enforcing ordinary legal rights, not just Fundamental Rights.

UPSC TRAPS

WRONG: Article 226 is itself a Fundamental Right, like Article 32.

CORRECT: Article 32 is a Fundamental Right; Article 226 is a constitutional power of the High Court, not a Fundamental Right.

WRONG: A litigant can approach only the Supreme Court for FR violations.

CORRECT: FR enforcement jurisdiction is concurrent — a litigant may approach either the High Court (Art 226) or the Supreme Court (Art 32).

MAINS ANGLE

Frame Article 226 vs Article 32 as complementary, not competing, remedies — concurrent jurisdiction widens access to justice for Fundamental Rights while Article 226 additionally reaches ordinary legal wrongs.

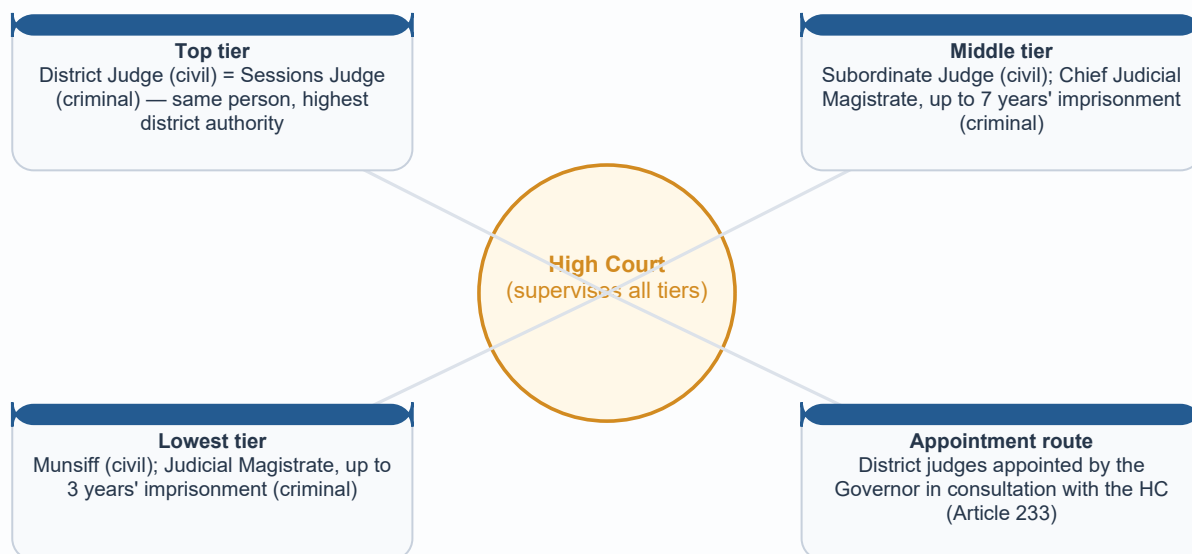
STUDY LINK

Fundamental Rights -> Article 32 | Judicial Review -> Basic Structure

HIGH

7. Subordinate Courts: The Three Tiers Below the High Court

GS-II Polity -
Subordinate
Judiciary

STRUCTURE OF THE SUBORDINATE JUDICIARY**KEY DATA**

Tier	Civil side	Criminal side
Top	District Judge	Sessions Judge (same person)
Middle	Subordinate Judge	Chief Judicial Magistrate
Lowest	Munsiff	Judicial Magistrate

STATIC THEORY

- The District Judge is the highest judicial authority in a district, exercising both original and appellate jurisdiction in civil and criminal matters, and as Sessions Judge may award capital punishment, subject to confirmation by the High Court.
- Article 233 provides that district judges are appointed by the Governor in consultation with the High Court having jurisdiction over the state.
- Metropolitan cities also have City Civil Courts and Metropolitan Magistrates, alongside Small Causes Courts and village-level Nyaya Panchayats/Gram Kutchery.

MEMORY HOOK

District Judge = Sessions Judge (top); Subordinate Judge = CJM (middle); Munsiff = JM (lowest).

MUST-KNOW FACTS

1. The District Judge and Sessions Judge are the same person wearing two hats — civil and criminal.
2. District judges are appointed by the Governor in consultation with the High Court (Article 233).
3. A death sentence passed by a Sessions Court requires confirmation by the High Court before execution.

UPSC TRAPS

WRONG: The District Judge and Sessions Judge are two different judicial officers.

CORRECT: They are the same person functioning in two capacities — civil as District Judge, criminal as Sessions Judge.

WRONG: District judges are appointed directly by the High Court.

CORRECT: They are appointed by the Governor in consultation with the High Court (Article 233).

MAINS ANGLE

Use the subordinate court structure to discuss access-to-justice reforms — case pendency, judicial vacancies and the case for an All India Judicial Service, all rooted at this tier.

STUDY LINK

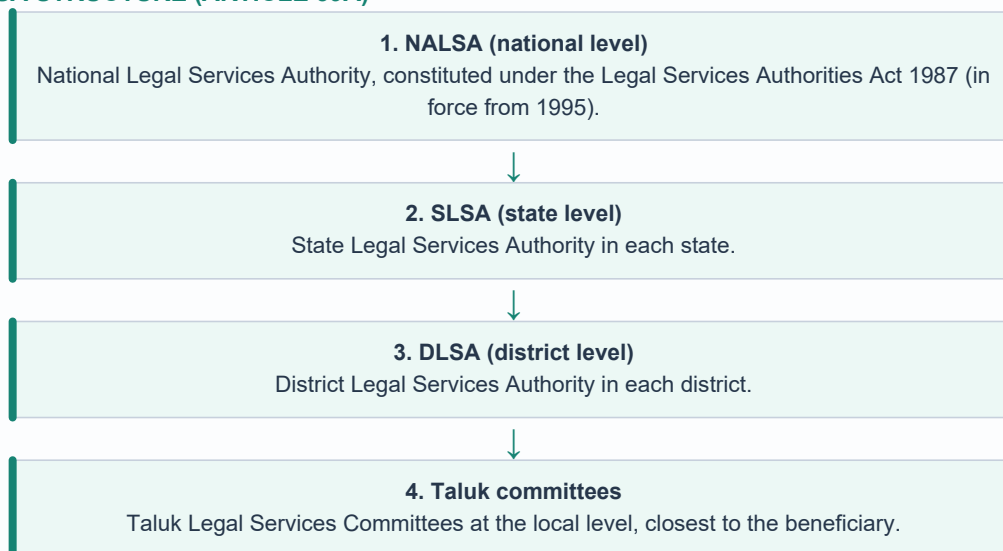
Polity -> Article 233-237 | Governance -> Judicial reforms

HIGH**8. NALSA: Free Legal Aid and the Lok Adalat System**

GS-II Polity -
Legal Services
Authorities

NEWS TRIGGER

Pendency-reduction drives keep NALSA, Lok Adalats and e-Courts in the policy spotlight as tools for widening access to justice.

THE NALSA STRUCTURE (ARTICLE 39A)**STATIC THEORY**

- NALSA operationalises Article 39A (a Directive Principle) by providing free legal aid and organising Lok Adalats to ensure that opportunities for justice are not denied due to economic or other disabilities.
- Eligible beneficiaries for free legal aid include women, children, SC/ST persons, persons with disabilities, victims of custody or disasters, and those with income up to a prescribed threshold (₹1 lakh, per the source material).

MEMORY HOOK

39A -> NALSA -> SLSA -> DLSA -> Taluk committees: legal aid all the way down.

MUST-KNOW FACTS

1. NALSA operates under the Legal Services Authorities Act, 1987, which came into force in 1995.
2. The NALSA hierarchy runs National -> State -> District -> Taluk.
3. Lok Adalats are a key mechanism NALSA uses to reduce pendency.

UPSC TRAPS

WRONG: NALSA is a purely judicial body created directly by the Constitution.

CORRECT: NALSA is a statutory body under the Legal Services Authorities Act 1987, giving effect to the Directive Principle in Article 39A.

MAINS ANGLE

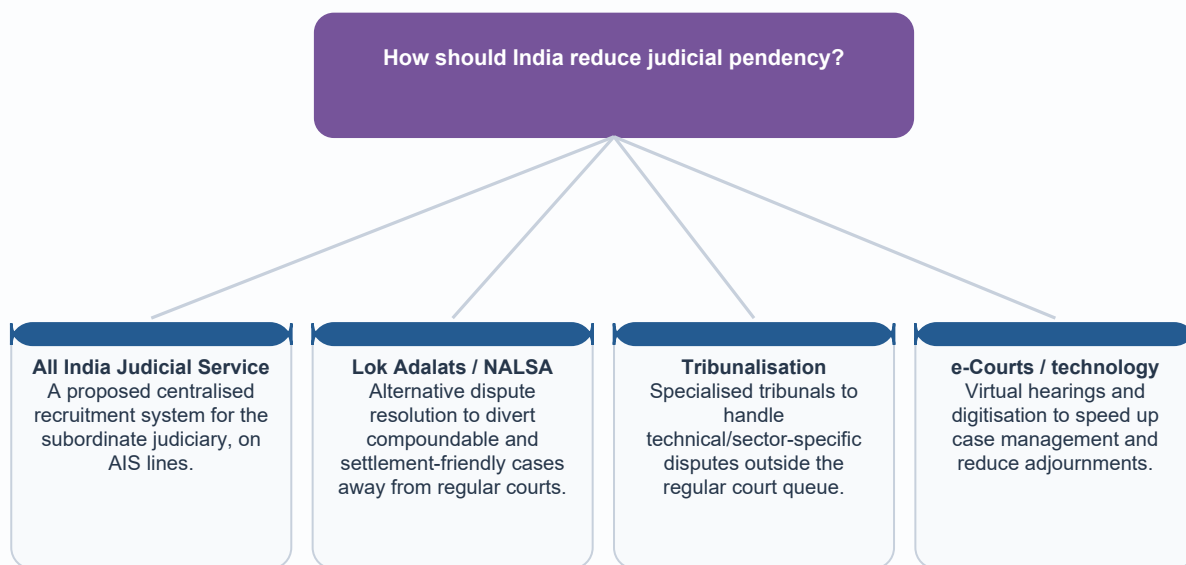
Present NALSA and Lok Adalats as the institutional response to Article 39A's promise of equal justice and free legal aid — a strong Directive-Principles-in-action example.

STUDY LINK

Polity -> Article 39A | Directive Principles -> Implementation examples

HIGH**9. Judicial Pendency: Causes and the Reform Debate**GS-II Polity -
Judicial Reform**NEWS TRIGGER**

Case pendency and High Court vacancies — part of India's roughly 5 crore pending cases — keep judicial reform (NALSA/Lok Adalats, e-Courts, All India Judicial Service) in the news.

ADDRESSING JUDICIAL PENDENCY**STATIC THEORY**

- A large share of India's roughly 5 crore pending cases sits in High Courts and subordinate courts, driven by vacancies, adjournments and rising case filings.
- Debates on HC judges' transfers and elevation transparency are part of the wider collegium-reform conversation.

MEMORY HOOK

Pendency fix = AIJS + Lok Adalats + Tribunals + e-Courts.

MUST-KNOW FACTS

1. India has roughly 5 crore pending court cases across all tiers.
2. An All India Judicial Service has been proposed for subordinate judiciary recruitment, similar to the All India Services.
3. e-Courts and virtual hearings are among the technology-driven pendency-reduction measures.

UPSC TRAPS

WRONG: The All India Judicial Service already exists and recruits judges.

CORRECT: It remains a debated proposal, not yet implemented.

MAINS ANGLE

Structure a pendency-reform answer around four pillars: recruitment (AIJS), alternative dispute resolution (Lok Adalats/NALSA), specialisation (tribunals), and technology (e-Courts).

STUDY LINK

Governance -> Judicial reforms | Polity -> Tribunalisation debate

HIGH**10. Verified PYQ: Lok Adalats vs Arbitration Tribunals (2024)**

GS-II Polity -
PYQ Application

NEWS TRIGGER

This is a verified Mains PYQ from the source material, used here strictly as recorded — 2024 GS-II, Question 2, 10 marks, 150 words.

INTRO & ORIGIN

'Explain and distinguish between Lok Adalats and Arbitration Tribunals. Whether they entertain civil as well as criminal cases?'

KEY DATA

Feature	Lok Adalat	Arbitration Tribunal
Nature	Statutory conciliation/compromise forum	Consensual private adjudication
Basis	Legal Services Authorities Act 1987	Party agreement (arbitration clause/agreement)
Civil matters	Settles compoundable and settlement-friendly civil disputes	Handles arbitrable civil/commercial disputes
Criminal matters	May settle compoundable criminal matters only	Does not entertain criminal prosecution

STATIC THEORY

- The verified answer route: present Lok Adalats as a statutory conciliation/compromise forum, and arbitration as consensual private adjudication.
- Lok Adalats may settle compoundable criminal matters but not non-compoundable offences; arbitration concerns arbitrable civil/commercial disputes, not criminal prosecution at all.

MEMORY HOOK

Lok Adalat = statutory conciliation, some compoundable crime; Arbitration = private consensual, civil/commercial only.

MUST-KNOW FACTS

1. This is a verified 2024 GS-II Mains question (10 marks, 150 words).
2. Lok Adalats can settle compoundable criminal matters, unlike arbitration tribunals, which handle no criminal matters at all.
3. Both forums entertain civil disputes, but through different mechanisms — statutory conciliation vs private consensual arbitration.

UPSC TRAPS

WRONG: Lok Adalats and Arbitration Tribunals can both hear any criminal case.

CORRECT: Only Lok Adalats may settle compoundable criminal matters; arbitration does not extend to criminal prosecution at all.

MAINS ANGLE

For this exact PYQ, structure the 150-word answer as: (1) define both forums, (2) contrast statutory vs consensual basis, (3) answer the civil/criminal question directly with the compoundable-offence nuance.

STUDY LINK

Polity -> NALSA | Governance -> Alternative Dispute Resolution

HIGH**11. Concept Links and Revision Capsule**

GS-II Polity -
Revision & Links

STATIC THEORY

- Article 214: HC for each state (7th Amdt allows common HC). Article 226: writ jurisdiction (FRs + any other purpose), wider than Article 32. Article 227: supervisory jurisdiction. Article 215: court of record.
- Article 233: district judges appointed by Governor in consultation with the HC. Article 39A + Legal Services Authorities Act 1987: NALSA and Lok Adalats.
- HC judge: 62 years retirement, oath before Governor, no distinguished-jurist route. SC judge: 65 years retirement, oath before President, distinguished-jurist route available.

MEMORY HOOK

214 = HC exists | 226 = writs | 227 = supervision | 233 = district judge appointment | 39A = NALSA.

MUST-KNOW FACTS

1. The High Court's Article 226 power is part of the basic structure (L. Chandra Kumar, 1997).
2. The collegium system, not NJAC, currently governs HC/SC judge appointments.
3. NALSA gives statutory effect to the Directive Principle in Article 39A.

UPSC TRAPS

WRONG: Supervisory jurisdiction under Article 227 requires a formal appeal to be filed.

CORRECT: The HC can exercise Article 227 supervisory jurisdiction suo motu, without a formal appeal.

HOW THE HIGH COURT CONNECTS TO OTHER TOPICS

Core Concept	Linked Concept	Why It Matters
Article 226 writ power	Fundamental Rights (Article 32)	Concurrent jurisdiction widens access to constitutional remedies for rights violations.
HC judge appointment	Collegium System / NJAC (2015)	Central to the judicial-independence-v-s-accountability debate.
District judge appointment	Governor's role (Article 233)	One of the few judicial functions performed by a state's executive head.
NALSA / Lok Adalats	Directive Principles (Article 39A)	Shows a Directive Principle translated into a working statutory institution.
Supervisory jurisdiction (Article 227)	Administrative Tribunals	Raises questions on tribunalisation reducing regular-court oversight.

MAINS ANGLE

In any question on judicial reform or access to justice, weave together the HC's jurisdiction (Art 226/227), the appointment process, and NALSA/Lok Adalats to show a complete institutional picture.

STUDY LINK

Polity -> Chapters 34-36, High Court & Subordinate Courts -> Full revision